

Appendix**FORM A***[Section 3 of The Victims of Interpersonal Violence Act]***Emergency Intervention Order**

RE: _____

(Name of Victim)

AND

*(Name of Respondent)*_____
*(Address)***TO THE RESPONDENT:**

You are subject to this EMERGENCY INTERVENTION ORDER. This ORDER was made by a designated justice of the peace pursuant to *The Victims of Interpersonal Violence Act*.

YOU MUST OBEY THE PROVISIONS OF THIS ORDER. Failure to obey this order is an offence under the *Criminal Code* with punishment, on conviction, of up to two years' imprisonment.

You have the right to apply to the Court of Queen's Bench at _____ to either set aside or change this ORDER.

YOU SHOULD IMMEDIATELY CONTACT A LAWYER for advice as to what your rights are and as to what you are required to do respecting this ORDER.

PROVISIONS:

Having heard the evidence, I find that the victim is in need of immediate protection pursuant to section 3 of *The Victims of Interpersonal Violence Act*.

I order that:

- ☐ 1. The victim is granted exclusive occupation of the following residence: _____

- ☐ 2. A peace officer remove the respondent from the following residence: _____

- ☐ 3. The respondent may not communicate with or contact the victim and/or any of the following persons through any form of communication, including electronic communication: _____

- ☐ 4. The respondent may communicate with and/or contact the victim or any of the following persons, but only on the following terms: _____

- ☐ 5. A peace officer accompany the person designated below to the residence within the time and date designated below, on one occasion, to supervise the removal of personal belongings: _____

- ☐ 6. The respondent may not attend at, be near or enter any of the following specified places that are attended by the victim or other family members: _____

☐ 7. _____

This ORDER remains in force until: _____
(month) (day) (year)

Dated at _____, Saskatchewan on _____, 20____, _____^{a.m.}
(month) (day) (time)

(Signature of Justice of the Peace)

(Justice of the Peace Number)

Confirmed by the Honourable M _____ Justice _____

(date)

Local Registrar
Court of Queen's Bench, Family Law Division

PART 1 – Original (Court Copy)

FORM A

[Section 3 of *The Victims of Interpersonal Violence Act*]**Emergency Intervention Order**RE: _____
(Name of Victim)

AND

(Name of Respondent)_____
(Address)**TO THE RESPONDENT:**

You are subject to this EMERGENCY INTERVENTION ORDER. This ORDER was made by a designated justice of the peace pursuant to *The Victims of Interpersonal Violence Act*.

YOU MUST OBEY THE PROVISIONS OF THIS ORDER. Failure to obey this order is an offence under the *Criminal Code* with punishment, on conviction, of up to two years' imprisonment.

You have the right to apply to the Court of Queen's Bench at _____ to either set aside or change this ORDER.

YOU SHOULD IMMEDIATELY CONTACT A LAWYER for advice as to what your rights are and as to what you are required to do respecting this ORDER.

PROVISIONS:

Having heard the evidence, I find that the victim is in need of immediate protection pursuant to section 3 of *The Victims of Interpersonal Violence Act*.

I order that:

- ☐ 1. The victim is granted exclusive occupation of the following residence: _____

- ☐ 2. A peace officer remove the respondent from the following residence: _____

- ☐ 3. The respondent may not communicate with or contact the victim and/or any of the following persons through any form of communication, including electronic communication: _____

- ☐ 4. The respondent may communicate with and/or contact the victim or any of the following persons, but only on the following terms: _____

- ☐ 5. A peace officer accompany the person designated below to the residence within the time and date designated below, on one occasion, to supervise the removal of personal belongings: _____

- ☐ 6. The respondent may not attend at, be near or enter any of the following specified places that are attended by the victim or other family members: _____

☐ 7. _____

This ORDER remains in force until: _____
(month) (day) (year)

Dated at _____, Saskatchewan on _____, 20____, _____^{a.m.}
(month) (day) (time)^{p.m.}

(Signature of Justice of the Peace or Peace Officer)

(Justice of the Peace Number)

PART 2 – Respondent's Copy

FORM A

[Section 3 of *The Victims of Interpersonal Violence Act*]**Emergency Intervention Order**

RE: _____
(Name of Victim)

AND

(Name of Respondent)

(Address)

TO THE RESPONDENT:

You are subject to this EMERGENCY INTERVENTION ORDER. This ORDER was made by a designated justice of the peace pursuant to *The Victims of Interpersonal Violence Act*.

YOU MUST OBEY THE PROVISIONS OF THIS ORDER. Failure to obey this order is an offence under the *Criminal Code* with punishment, on conviction, of up to two years' imprisonment.

You have the right to apply to the Court of Queen's Bench at _____ to either set aside or change this ORDER.

YOU SHOULD IMMEDIATELY CONTACT A LAWYER for advice as to what your rights are and as to what you are required to do respecting this ORDER.

PROVISIONS:

Having heard the evidence, I find that the victim is in need of immediate protection pursuant to section 3 of *The Victims of Interpersonal Violence Act*.

I order that:

- ☐ 1. The victim is granted exclusive occupation of the following residence: _____

- ☐ 2. A peace officer remove the respondent from the following residence: _____

- ☐ 3. The respondent may not communicate with or contact the victim and/or any of the following persons through any form of communication, including electronic communication: _____

- ☐ 4. The respondent may communicate with and/or contact the victim or any of the following persons, but only on the following terms: _____

- ☐ 5. A peace officer accompany the person designated below to the residence within the time and date designated below, on one occasion, to supervise the removal of personal belongings: _____

- ☐ 6. The respondent may not attend at, be near or enter any of the following specified places that are attended by the victim or other family members: _____

☐ 7. _____

This ORDER remains in force until: _____
(month) (day) (year)

Dated at _____, Saskatchewan on _____, 20____, _____^{a.m.}
(month) (day) (time)^{p.m.}

(Signature of Justice of the Peace or Peace Officer)

(Justice of the Peace Number)

PART 3 – Victim's Copy

FORM A

[Section 3 of *The Victims of Interpersonal Violence Act*]**Emergency Intervention Order**

RE: _____
(Name of Victim)

AND

(Name of Respondent)

(Address)

TO THE RESPONDENT:

You are subject to this EMERGENCY INTERVENTION ORDER. This ORDER was made by a designated justice of the peace pursuant to *The Victims of Interpersonal Violence Act*.

YOU MUST OBEY THE PROVISIONS OF THIS ORDER. Failure to obey this order is an offence under the *Criminal Code* with punishment, on conviction, of up to two years' imprisonment.

You have the right to apply to the Court of Queen's Bench at _____ to either set aside or change this ORDER.

YOU SHOULD IMMEDIATELY CONTACT A LAWYER for advice as to what your rights are and as to what you are required to do respecting this ORDER.

PROVISIONS:

Having heard the evidence, I find that the victim is in need of immediate protection pursuant to section 3 of *The Victims of Interpersonal Violence Act*.

I order that:

- ☐ 1. The victim is granted exclusive occupation of the following residence: _____

- ☐ 2. A peace officer remove the respondent from the following residence: _____

- ☐ 3. The respondent may not communicate with or contact the victim and/or any of the following persons through any form of communication, including electronic communication: _____

- ☐ 4. The respondent may communicate with and/or contact the victim or any of the following persons, but only on the following terms: _____

- ☐ 5. A peace officer accompany the person designated below to the residence within the time and date designated below, on one occasion, to supervise the removal of personal belongings: _____

- ☐ 6. The respondent may not attend at, be near or enter any of the following specified places that are attended by the victim or other family members: _____

☐ 7. _____

This ORDER remains in force until: _____
(month) (day) (year)

Dated at _____, Saskatchewan on _____, 20____, _____^{a.m.}
(month) (day) (time)^{p.m.}

(Signature of Justice of the Peace or Peace Officer)

(Justice of the Peace Number)

PART 4 – Peace Officer’s Copy (Certificate of Service on reverse)

CERTIFICATE OF SERVICE

I, _____, certify that on
the _____ day of _____, 20____, I served the
respondent, _____ at _____ with a copy of the emergency
intervention order (reverse side).

OR

I served the emergency intervention order (reverse side) in accordance with the order for
substitutional service as follows:

Dated at _____, Saskatchewan on _____, 20____.
(month) (day)

(Peace Officer)